

An Act

ENROLLED HOUSE
BILL NO. 3322

By: Osburn of the House

and

Howard of the Senate

An Act relating to statutes and reports; amending 75 O.S. 2021, Section 11a, which relates to statutory interpretation; providing for construction of certain amendatory enactments; stating legislative intent; creating presumption; defining term; and providing an effective date.

SUBJECT: Statutes and reports

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 75 O.S. 2021, Section 11a, is amended to read as follows:

Section 11a. In the construction of the statutes of this state, the following rules shall be observed:

1. For any act enacted on or after July 1, 1989, unless there is a provision in the act that the act or any portion thereof or the application of the act shall not be severable, the provisions of every act or application of the act shall be severable. If any provision or application of the act is found to be unconstitutional and void, the remaining provisions or applications of the act shall remain valid, unless the court finds:

- a. the valid provisions or application of the act are so essentially and inseparably connected with, and so dependent upon, the void provisions that the court cannot presume the Legislature would have enacted the remaining valid provisions without the void one~~+~~1, or

- b. the remaining valid provisions or applications of the act, standing alone, are incomplete and are incapable of being executed in accordance with the legislative intent~~;~~;

2. For acts enacted prior to July 1, 1989, whether or not such acts were enacted with an express provision for severability, it is the intent of the Oklahoma Legislature that the act or any portion of the act or application of the act shall be severable unless:

- a. the construction of the provisions or application of the act would be inconsistent with the manifest intent of the Legislature~~;~~;
- b. the court finds the valid provisions of the act are so essentially and inseparably connected with and so dependent upon the void provisions that the court cannot presume the Legislature would have enacted the remaining valid provisions without the void one~~;~~; or
- c. the court finds the remaining valid provisions~~,~~, standing alone, are incomplete and are incapable of being executed in accordance with the legislative intent~~;~~;

3. When acts amend the same statute or statutes, whether in the same or different sessions of the Legislature, creating multiple versions of the same statute or statutes, it is the intent of the Oklahoma Legislature that:

- a. when possible, the acts are to be construed together to determine the intent of the Legislature, reconciling provisions, rendering them consistent and giving intelligent effect to each act,
- b. repeal by implication is disfavored,
- c. language in amendatory measures that is neither underlined nor stricken through is not intended to change the statute but is only reproduced to provide context and placement to the amendatory language,
- d. acts which do not purport by citation to amend the other version or versions of the same statute are

presumed to be reconcilable and not to conflict or contravene one another, and

- e. if the same section of law has been amended in two or more measures and as a result of the enactment of those measures the official statutes of the State of Oklahoma contain two or more versions of the same section of law, if it is possible to determine the exact date and time as of which each measure was enacted as law, there shall be a presumption that the measure enacted latest in time contains the Legislature's intent if there is a conflict between or among the versions which cannot be avoided by construing both or all versions of the statute together. As used in this subparagraph, "enacted as law" shall mean the date, hour, and minute the measure was signed by the Governor.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 10th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 15th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____